Revision Date:
May 1, 2024

Background:
When additional information is needed to determine eligibility for CalWORKs benefits, the request for verification must inform customers of the program requirements and their rights and responsibilities.

Purpose:
This section outlines CalWORKs policies and procedures regarding requests for verification. The purpose of this revision is for sunset review. There is no policy change.

Policy:
Customers are required to provide information that is necessary to determine eligibility and calculate a grant amount. Verification that is available in the case record will not be required to be provided again. When verification does not exist or cannot be obtained after all efforts have been made, the customer's sworn statement may be accepted as a last resort, except for verification of citizen/noncitizen status. When a sworn statement is provided for verification of pregnancy, the customer must provide a valid medical verification of pregnancy within 30 business days following the submittal of the sworn statement. Refer to CalWORKs Program Guide (CPG) 41-500.F *Pregnancy Based Assistance Unit* for more information.

Written Request for Verification
Customers are required to be notified in writing via form CW 2200 *Request for Verification* when information is needed to complete the eligibility determination. The CW 2200 must specify what required information is pending, the name of the person for whom verification is required, and the date the verification must be provided.

State regulations require the CW 2200 to:
- Include examples of any alternative types of verification that may be acceptable.
- Inform that a sworn statement may be adequate if other verification does not exist.
- Inform that the county can assist in obtaining the necessary information from a third party and can pay a third party fee (in some instances) if it is needed to obtain the required information.
- Provide an Authorization for Release of Information that may be completed by the customer if county assistance is requested.
- Inform the customer of the consequences for refusing to provide the requested information.

Verification Due Date
The written request for verification must allow sufficient time for the customer to provide the necessary information or request help from the county to obtain the information from a third party, within established application, redetermination, or mid-period processing timeframes.

The verification request date is the date the CW 2200 is issued (Day 0). The verification due date will be 10 days from the request date, with the exception of certain redetermination verification requests. When the due date falls on a weekend or holiday, the verification will still be accepted and considered timely if received by the next business day following the due date.

For redeterminations, the verification due date may not exceed the last day of the redetermination month. If the requested verifications are received after the due date, the county must evaluate if good cause exists that prevented the customer from completing their redetermination in a timely manner. The county will rescind the discontinuance if good cause exists. Refer to CPG 40-100.G *Redetermination of CalWORKs Eligibility* for CalWORKs redetermination policies.

Good Faith Effort

Customers have the responsibility to make a good faith effort to obtain the verifications necessary to establish their eligibility. A "good faith effort" means the customer has attempted to comply within the limits of their resources.

County Assistance

The county can assist the customer to obtain information from a third party after a good faith effort has been made by the customer. With the appropriate Authorization for Release of Information, the county can contact a third party to request the information on behalf of the customer. The county can pay a third party fee, in some instances, to obtain a verification. Refer to CalWORKs Processing Guide 40-100.A5 *Birth Certificate, Identity Verification and Third Party Payment Process.*

The county is to provide assistance and reasonable accommodations, in accordance with Eligibility Policy and Procedure Guide (EPPG) *Civil Rights, Language Services, and Disability Accommodations.*

Failure to Provide and Refusal to Cooperate

CalWORKs benefits may not be denied, discontinued, or decreased for failure to provide while the customer is continuing to cooperate and is making a good faith effort to obtain the necessary information. Additionally, CalWORKs may not be denied, discontinued, or decreased due to missing verifications if the customer asked the county for help to obtain the requested information.

CalWORKs may be denied, discontinued, or decreased if the customer refuses to cooperate, does not submit the requested information or does not contact the county to request assistance by the verification due date. Denials due to failure to cooperate must be rescinded if the necessary information is received within 30 days of the denial.

Procedure:

Staff are required to document the request for verification in the case record, including the pending information and verification due date, as well as any request for county assistance or delay in processing timeframes. Staff must also document the customer's refusal to cooperate, failure to make a good faith effort, or failure to request help from the county.

Impacts:

Forms and Document Capture

The CW 2200 is a required form, and a copy of the request for verification must be retained in the case record. When the CW 2200 is completed manually, all pages are to be submitted for imaging.

Other Programs Affected:

CalFresh: CFPG 63-117
Civil Rights: EPPG Civil Rights, Language Services and Disability Accommodations

References:
MPP 40-115.22, 40-126.3, 40-181.1(k)
ACL 14-26, 14-88, 21-134

Sunset Date:
This policy will be reviewed for continuance by May 31, 2027.

Approval for Release:

5-20-24

Rick Wanne, Director
Self Sufficiency Services